

		On the other hand, nothing in the file suggests that an enhancement is appropriate in this case. Both parties indicate that they regularly litigate in this area of the law. With respect to the issue of costs, as previously noted, plaintiff filed a memo of costs at the same time that he filed this motion. Like the motion, it claims costs of \$2020.46, but defendant did not affirmatively move to strike or tax those costs. ***OSC RE: Dismissal of Settled Case is continued to March 15, 2027 at 9 AM. Moving Party shall give notice of all the above.
2	Landeroz vs. Tustin Hills Healthcare, Inc. 2025-01514947	1. Demurrer to Amended Complaint 2. Motion to Strike Portions Of Complaint MOTION #1: The general demurrer of defendant Tustin Hills Healthcare, Inc., dba The Hills Post Acute, to the second cause of action for dependent adult abuse and neglect in the second amended complaint of plaintiff Domingo Alcala Landeroz, individually and as the successor-in-interest to The Estate of Maria Del Refugio Alcala Landeros is SUSTAINED, without leave to amend. Discussion. Defendant demurs generally and specially on the ground of uncertainty to the second cause of action in the second amended complaint. Defendant contends that the cause of action, which is brought under the Elder and Dependent Adult Civil Protection Act and seeks enhanced (or heightened) remedies, does not contain sufficient facts to set forth the claim and is not pled with the specificity required for a

	statutory cause of action. Plaintiff opposes the demurrer and contends otherwise. The Elder Abuse Act's heightened remedies are available only in limited circumstances. <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 156. A plaintiff must prove, by clear and convincing evidence, that a defendant is liable for either physical abuse under section Welf. & Inst. Code section 15610.63 or neglect under section 15610.57, and that the defendant committed the abuse with recklessness, oppression, fraud, or malice. <i>Ibid.</i> Section 15610.57 provides two definitions of neglect: (1) the negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise; and (2) the negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise. <i>Winn v. Pioneer Medical Group, Inc.</i>, <i>supra</i>, 63 Cal.4th at p. 156. The statute also contains an explicitly non-exhaustive list of "neglect" examples to complement these definitions; this list includes the failure to assist in personal hygiene, the failure to provide food, clothing or shelter, the failure to provide medical care for physical and mental health needs, the failure to protect from health and safety hazards, and the failure to prevent malnutrition or dehydration. <i>Ibid.</i> The examples contained within section 15610.57 statute "seem to contemplate ... the existence of a robust caretaking or custodial relationship—that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance." <i>Winn v. Pioneer Medical Group, Inc.</i>, <i>supra</i>, 63 Cal.4th at p. 158. Thus, "[t]he Act seems premised on the idea that certain situations place elders and dependent adults at heightened risk of harm, and
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	heightened remedies relative to conventional tort remedies are appropriate as a consequence. [Citation.]” Id. at pp. 158-159. Here, defendant contends that the allegations in the SAC do not show that defendant failed to provide for decedent’s basic needs. Rather, it contends that the allegations relate to failures in security and monitoring of controlled substances and facility visitors and sound in negligence. In opposing the demurrer, plaintiff contends that the SAC contains allegations that defendant failed to provide protective custodial systems necessary to prevent a vulnerable resident’s unauthorized fentanyl exposure. In reply, defendant points out that the SAC relates to one single isolated incident that does not amount to neglect or abuse. In fact, all of the factual allegations in the SAC are contained within the introductory section and incorporated by reference into the three causes of action. Thus, the same factual allegations are offered by plaintiff to support the first cause of action for medical negligence as well as the second cause of action for dependent adult neglect and abuse. These allegations include the following allegations, which appear in paragraphs 3 and 5: At the time Defendant accepted [decedent] as a resident, Defendant received and/or had access to her hospital transfer records, admission materials, physician orders, medication information, and chart information identifying fentanyl as a documented allergy and/or medication to which [decedent] should not be exposed. Defendant’s own order summary listed fentanyl as an allergy, and the coroner investigation later documented that Executive Director Brett Allen confirmed the fentanyl allergy had been imported from the hospital and printed throughout Defendant’s records. ... While [decedent] was in Defendant’s custodial environment and unable to protect herself, she suffered an unwitnessed fentanyl
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		exposure, collapsed in her room was found unresponsive, was transported emergently to the hospital, tested positive for fentanyl despite the absence of any fentanyl order for her at the facility, and thereafter was diagnosed with fentanyl toxicity, anoxic brain injury, and cerebral edema. Plaintiff additionally alleges in paragraph 28 that, by accepting decedent into the facility, defendant "undertook direct custodial duties that included keeping unauthorized persons and unauthorized drugs from reaching her; securing controlled substances; maintaining accurate visitor and room-access records; supervising staff entrusted with resident care and medication access; honoring charting allergy alerts; recognizing significant changes in condition; and responding immediately and appropriately to emergencies involving a medically fragile resident." These allegations make it clear that both the first and second causes of action sound in negligence rather than neglect as that term is used in Welf. & Inst. Code § 15610.57, Therefore, defendant's challenge to the second cause of action is well-taken. MOTION #2: The motion of defendant Tustin Hills Healthcare, Inc., dba The Hills Post Acute, to strike portions of the second amended complaint of plaintiff Domingo Alcala Landeroz, individually and as the successor-in-interest to The Estate of Maria Del Refugio Alcala Landeros, is GRANTED without leave to amend. Discussion. Defendant moves to strike the following portions of the second amended complaint: • paragraphs 57 through 60 in their entirety (item 1 in the notice of motion) • paragraph 4 of the prayer, which asks for an award of attorneys' fees and costs
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		under Welf. & Inst. Code section 15657 (item 2 in the notice of motion) • paragraph 7 of the prayer, which asks for an award of punitive damages “to the extent permitted by law on the dependent-adult abuse claim and any other claim supporting such recovery” (item 3 in the notice of motion) Although paragraphs 57 through 60 are in the introductory portion of the SAC rather than the second cause of action for statutory elder abuse, they are in a section entitled “Allegations Supporting Heightened Remedies and Punitive Damages” and reference the second cause of action. Likewise, the requests for attorneys’ fees and costs and attorneys’ fees reference the second cause of action. In that the Court is sustaining the accompanying demurrer to the second cause of action, these allegations and requests are now extraneous to the viable causes of action in the SAC. Also, the allegations in paragraphs 57 through 60 are conclusory and made on information and belief without specifying the basis for that information and belief. Moving Parties shall give notice of all the above.
3	Ragland vs. Wells Fargo, N.A. 2020-01137118	1. Motion – Other 2. Motion to Strike or Tax Costs Plaintiff’s Motion to Tax Costs Plaintiff Motion to Strike and/or Tax Costs is DENIED. (Cal. Rules of Court, Rules 3.1700 and 8.278; ROA 2333 [Memorandum of Costs on Appeal]; ROA 2330 [Minute Order dated 4/6/26]; ROA 2319 [Remittitur dated 1/22/26].) Plaintiff argues the Memorandum of Costs is not timely. Plaintiff reasons that the Memorandum of Costs was filed more than 15 days from 4/6/26, the date the stay of proceedings was lifted. Cal. Rules of Court,